

therefore, view all material allegations in the light most favorable to the plaintiff and resolve all doubts in her favor. Dunn v. Gazzola, [REDACTED] (1st Cir. 1954). The court should [REDACTED] it appears beyond doubt that the plaintiff can prove no set of facts in support of his claim which would entitle him to relief." Conley v. Gibson, 78 S. Ct. 99, 101-02 (1957).

B. Motion to Dismiss Count I

Count I alleges that Defendant Feigin, as well as the Police Officer Defendants, violated 42 U.S.C. §1983 by depriving Plaintiff of equal protection under the law.

As an initial matter, there is absolutely no reference in Plaintiff's complaint to any police officer besides Defendant Chevalier. Plaintiff does not allege any misconduct by the other Police Officer Defendants either specifically or generally. Accordingly, Defendant Police Officers Brady, Hunter, Taylor, Busby and Sheehan's motions to dismiss Count I are ALLOWED.

Plaintiff alleges that Defendant Feigin's failure to notify Gary Weems' next of kin, failure to deliver Gary Weems' personal effects to his next of kin, failure to carefully inquire into Gary Weems' death, failure to dispose of Gary Weems' body in a manner desired by his next of kin, and failure to respond truthfully to Gary Weems' family, were all on account of racial discrimination.

[REDACTED] by

asserting an inequity and tacking on the self-serving conclusion that the defendant was motivated by a discriminatory animus." Correa-Martinez v. Arrillaga-Belendez, 903 F.2d 49, 53 (1st Cir. 1990). [REDACTED] juxtaposing the fact of one's race with an instance of discrimination is insufficient to state a claim."

[REDACTED]

Cir. 1989). [REDACTED] civil rights complaint must 'outline facts sufficient to convey specific instances of unlawful discrimination.'" Correa-Martinez, 903 F.2d at 53 (quoting Dartmouth Review, 889 F.2d at 16).

Plaintiff has failed to meet her burden of pleading. She has not pled any facts that convey specific instances of unlawful discrimination by Defendant Feigin. All she has done is to present instances of rude behavior by Defendant Feigin, and then tack on the self-serving conclusion that Defendant Feigin was motivated by a discriminatory animus. This is not enough to state a claim upon which relief may be granted.

It is true that the facts, as pled, portray incredibly rude and insensitive behavior by Defendant Feigin. Rude behavior, however, does not necessarily rise to the level of a constitutional violation. See McMillan v. United States Department of Treasury, [REDACTED] 190 (1st Cir. 1991).

Plaintiff's attempt to show a pattern of discrimination by pointing to a case involving another black individual which was allegedly mishandled is similarly without merit. Although there is some basis to conclude that Defendant Feigin mishandled the

Blout case, the only supporting evidence that any mishandling was attributable to Ms. Blout's race, is one sentence in a May 9, 1992 Boston Globe article stating that Ms. Blout's mother believed that [REDACTED] authorities assumed her daughter's death was drug-related because she was black." Third Amended Complaint, Exhibit 3.1.

This court declines to infer racially discriminatory animus from this scant offering of evidence which, at best, amounts to one specific instance of what might have been unlawful discrimination, rather than a pattern and practice as Plaintiff alleges. Defendants' motion to dismiss Count I is, therefore, ALLOWED.

C. Motion to Dismiss Count II

A municipality can only be held liable under Section 1983 for injuries caused by a municipal policy or custom. Monell v. New York City Dept. of Social Services, [REDACTED].

A municipality is liable under Section 1983 for its failure to train police officers properly when it [REDACTED] to deliberate indifference to the rights of persons with whom the police come into contact." City of Canton v. Harris, 489 U.S. 378, 388 (1989). Plaintiff alleges that Defendant City of Lowell, with deliberate indifference, failed to institute a custom or policy that prohibited discrimination and failed to recruit and train its police officers in a way that prevented racial discrimination.

In order to survive a motion to dismiss, a complaint of municipality liability must allege the deprivation of a constitutional right, Andujar v. City of Boston, 760 F.Supp. 238, 241 (D.Mass. 1991) (Caffrey, J.); see also Baker v. McCollan, 443 U.S. 137, 140 [REDACTED] bare allegation that the individual officer's conduct conformed to official policy, custom, or practice." Karim-Panahi v. Los Angeles Police Dept., [REDACTED] 624 (9th Cir. 1988); see Leatherman v. Tarrant County Narcotics Intelligence and Coordination Unit, 507 U.S. 163, [REDACTED] municipal liability under Section 1983).²

There is only one instance in which the Plaintiff might have properly pled a deprivation of a constitutional right. The only defendant whose actions in any way imply racial animus was Defendant Chevalier. Plaintiff only alleges, however, that he "insinuated" that because she is black, she must know the street names for drugs. This is insufficient to survive a motion to dismiss in the First Circuit. See Correa-Martinez, 903 F.2d at 53 (quoting Dartmouth Review, 889 F.2d at 16). Plaintiff has also claimed that the conduct was a result of municipal custom or policy.

2. It may appear that by requiring only the bare allegation of a custom or policy along with a constitutional violation, it is too simple to survive a motion to dismiss. The Supreme Court, however, has blamed that phenomenon on the Federal Rules of Civil Procedure, [REDACTED] courts and litigants [in municipal liability cases] must rely on summary judgment and control of discovery to weed out nonmeritorious claims sooner rather than later." Leatherman, 507 U.S. at 168-69.

Even if this court held that Defendant Chevalier's actions may rise to the level of a constitutional violation, it is not enough for Plaintiff to allege a discriminatory municipal custom

 City of Oklahoma City v. Tuttle, 471 U.S. 808, 823-24 (1985); see also Andujar, 760 F.Supp. at 242 (applying Tuttle in context of motion to dismiss).

Defendant City of Lowell's Motion to Dismiss Count II is, therefore, ALLOWED.

D. Remaining State Law Claims

Having dismissed Count I and II of Plaintiff's Complaint, the court must determine whether to exercise jurisdiction over the pendant state law claims. All possible federal causes of action having been dismissed, concerns of neither economy, nor fairness, mandate that this court preside over the state law causes of action asserted by Plaintiff in Counts III and IV.

III.

Conclusion

For the foregoing reasons, Defendants' Motions to Dismiss Count I and II are ALLOWED for Plaintiff's failure to state a

3. Plaintiff's use of the Blout case to allege a pattern of discrimination is not useful to her claim against the City, as the Blout case occurred in Dorchester and was investigated by the Boston Police.

1 (b) OFFENSE.—Chapter 47 of title 18, United States
2 Code, is amended by adding at the end the following:

3 **“SEC. 1041. FALSE REPORTING.**

4 “(a) OFFENSE.—It shall be unlawful for any person
5 to knowingly and willfully falsify a report in a material
6 way with the intent to falsify, conceal, or cover up a mate-
7 rial fact, in furtherance of the deprivation of any rights,
8 privileges, or immunities secured or protected by the Con-
9 stitution or laws of the United States where death or seri-
10 ous bodily injury (as defined in section 1365) occurs.

11 “(b) PENALTY.—Any person who violates subsection
12 (a) shall be fined under this title, imprisoned for not more
13 than 20 years, or both.”.

14 (c) TECHNICAL AND CONFORMING AMENDMENT.—
15 The table of sections for chapter 47 of title 18, United
16 States Code, is amended by inserting after the item relat-
17 ing to section 1040 the following:

“1041. False reporting.”.

18 (d) SENTENCING ENHANCEMENT FOR FALSIFICA-
19 TION OF POLICE REPORTS.—Pursuant to its authority
20 under section 994 of title 28, United States Code, the
21 United States Sentencing Commission shall review and
22 amend the Federal sentencing guidelines to ensure that
23 the guidelines provide an additional penalty increase of not
24 fewer than 4 offense levels if the defendant knowingly and
25 willfully falsifies a report in a material way with the intent

DANGEL, DONLAN AND FINE, LLP

COUNSELLORS-AT-LAW

BEACON HILL

February 9, 1999

First ADA John W. McEvoy, Jr.

East Cambridge, MA 02141

Dear Mr. McEvoy:

My client Rebecca Judge resides in Somerville. On November 6, 1993, my client's brother, Gary Weems, then age 33, died in the City of Lowell. Mr. Weems's dead body came to the attention of the Lowell police on the morning of November 6, 1993, and an autopsy was performed by Medical Examiner Gerald Feigin on November 8, 1993. The [REDACTED] intoxication" and stated that the manner of death "could not be determined."

Neither my client nor any other member of Gary Weems's family was notified of the discovery of Gary Weems's dead body. As a result, my client and other members of Gary Weems's family did not learn of Gary Weems's death until more than six weeks after the death, and Gary Weems was buried in potter's field in Lowell.

In November 1996, my client brought a civil rights suit against the City of Lowell, members of the Lowell Police Department and Medical Examiner Feigin claiming that the failure to notify Gary Weems's family of his death and gross deficiencies in the way the death was investigated had come about as the result of unconstitutional racial discrimination. That suit was ultimately dismissed by the federal district court in January 1998 and the dismissal was affirmed by the Court of Appeals in November 1998 on the ground that Ms. Judge had not pled sufficient facts to show that the deficiencies in question had come about as a result of racial discrimination, as opposed to other possible causes.

I am writing to you now because the discovery Ms. Judge was able to obtain in the civil rights suit shows that Gary Weems died under highly suspicious circumstances which appear to have never been properly investigated. In particular, witness statements indicate that Gary Weems died as the result of being injected with drugs by one or more other

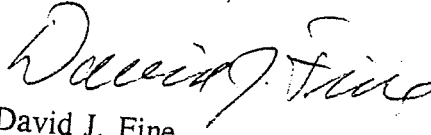
First ADA John W. McEvoy, Jr.
February 9, 1999
Page 2

persons at a time when he was unconscious, that money may well have been taken from him, and that, accordingly, he could have been murdered with robbery as the motive.

Ms. Judge and I request the opportunity to meet with you to discuss the prospect of your Office's investigating this matter.

Thank you for your consideration.

Very truly yours,


David J. Fine

DJF/js

C:\UDGEMCEVOY.LTR

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August 10, 1995

Ms. Rebecca Judge
7 Walter Terrace
Somerville, MA 02144

Ms. Denise Weems
[REDACTED]
Strafford, N.H. 03884

Ms. Justina Richardson
197 8th Street
Charlestown, MA 02129

Dear Ms. Judge, Ms. Weems and Ms. Richardson:

Please find enclosed a Contingent Fee Agreement regarding pursuit of the claims we discussed in my office on May 2, 1995. I am sending each of you two copies of the Agreement, which I have signed.

Please read each paragraph of the Agreement carefully. Please note, among other things, that, as stated in paragraph 7.c., I am advising each of you to consult your own, separate counsel before signing the Agreement.

If the Agreement is acceptable in its current form, please sign both copies of the Agreement in the two places indicated before a witness, who should also sign the Agreement; keep one of the signed copies for your records; and return the other signed copy to me. If the Agreement is not acceptable or if there is anything about the Agreement or the representation which you would like to discuss, please telephone me.

Best regards.

Sincerely,

David J. Fine
David J. Fine

DJF/lmc
Enclosures

8/6/2014

Gmail - link



link

Wed, Jun 4, 2014 at 11:46 AM

Hi Justina – I got the link but it wouldn't connect. Could you send it to this account. Thanks so much. - Sean



160 F.3d 67: Rebecca Judge, Plaintiff, Appellant, v. City of Lowell, et al., Defendants, Appellees :: US Court of Appeals Cases :: Justia

Wed, Jun 4, 2014 at 12:00 PM

Sun, Jun 8, 2014 at 9:37 PM

Hi Jestina – Thank you for sending this. Do you know if your aunt was able to send that paper work to my office? Thanks. - Sean

Sent: Wednesday, June 04, 2014 12:00 PM

To: Griffith, Sean (NOR)

Subject: 160 F.3d 67: Rebecca Judge, Plaintiff, Appellant, v. City of Lowell, et al., Defendants, Appellees :: US Court of Appeals Cases :: Justia

Mon, Jun 9, 2014 at 1:11 PM

My mother is going to go pick up a copy. She is the only one who can go to the clerks office and get it. She will going to give her your number. She can give you the whole story. I could only tell you what I was lead to believe for the last 20 years. I'm hurt because I had to find the truth on the internet. I thought my father had gotten justice I was lead to believe my aunt got money from the state, that was a lie.

Bottom line, I was I had to deal with being raped and molested for 15 years. Maybe if I had my father was alive to tell it would have stopped a lot sooner. Growing up in a all white society, maybe if my father was a live I wouldn't have been judge as just another black statistic in America.

When I was 18 I got in trouble with the law, I served five years, The prosecutor closing argument was I had a troubled childhood and lost my father at a young age. Society sees me was just another nigga in the streets paying for my parents mistakes. But the truth is it wasn't drugs that killed my father, it wasn't his recklessness to life. He was murdered by the police. The people I pay taxes too. To protect and serve not murder people. It pisses me off that sense my fathers murder some of these same officers have been excused of other homeless murders man and women. Now officer Taylor who was involved with my fathers murder is the Lowell police

If you have handcuffs to arrest people and hold them in jail, then they should have locked my father up and did there job. Instead they beat him to death and covered their own ass for 20 years. Now they get the privilege to continued to move up in rank, well I have to live with out my father and by an American statistic. I am now a mother and my children will never know the man I knew as a great father regardless of the men he was.

I'm writing a book about my life as well. I already have buys for my story but I know I can't mention the officers involved until I handle this. Making sure everyone involved is brought to justice. One officer already passed but I feel I still need someone to pay for his involvement as well. So if I can't sue the state I will be going after the Lowell Police Department.

I miss my father everyday, my son has his name and my goal in life is to help other inner city youth before they become a statistic of today's society do to the system that is flawed in so many ways. My father will get justice even if it took 21 years.

I will not stop fighting for my father. One because I am his only child and he was my father but most important, I want my son to know if anything ever happens to him I will never give up regardless of how much time passes.

Thank you for your time and I pray you can help my family get peace and justice.

Sincerely
Jestina Weems
[Quoted text hidden]

Fri, Jun 13, 2014 at 4:00 PM

Hi Justina – I'm sorry for all you've been through. But it sounds like you have a lot to be proud of – how hard you've worked for the success you've had and how much you've overcome.

I didn't receive anything from your aunt this week. Does she know to deliver everything to the Lowell

Sent: Monday, June 09, 2014 1:12 PM
To: Griffith, Sean (NOR)
Subject: Re: 160 F.3d 67: Rebecca Judge, Plaintiff, Appellant, v. City of Lowell, et al., Defendants, Appellees :: US Court of Appeals Cases :: Justia

[Quoted text hidden]

Fri, Jun 13, 2014 at 4:31 PM

Thank you Sean. I am proud of the hurdles I have over come. Unfortunately like any child weather grown or an adult the approval of their parents is something you always yearn for. I don't care how old you get. For little girls the approval and protection of a father is priceless. I don't have much but if I could trade some of these accomplishment and have my father back I wouldn't think twice. I wish I could say my life was sweet but I am just another lower class American and because I couldn't deal with the lose of my father as a teen I am still

8/6/2014

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paying for my decisions at 30. My accomplishments are not even worth much if I don't help other victims such as myself. I'm not going to lie some days I wake up and wish I had a different story to tell. All I know is it's my story and I can make the best out of my life with what I have and at the end of the day that's a smile.

[REDACTED]

Her name is Denise Gordon

[REDACTED]

[Quoted text hidden]

[REDACTED]

Fri, Jun 13, 2014 at 4:31 PM

[Quoted text hidden]

[REDACTED]

Mon, Jul 21, 2014 at 2:39 PM

----- Forwarded message -----

[REDACTED]

Date: Wed, Jun 4, 2014 at 12:00 PM

Subject: 160 F.3d 67: Rebecca Judge, Plaintiff, Appellant, v. City of Lowell, et al., Defendants, Appellees :: US Court of Appeals Cases :: Justia

[REDACTED]

[REDACTED]



Hello

[REDACTED] Fri, Jul 11, 2014 at 10:01 AM

[REDACTED]

Well I came up to New Hampshire on the 28th to get the autopsy report myself. Unfortunately that same Monday me and my mother we're getting dressed to head to Mass. An officer showed up at our house to tell us that her grandson my nephew had died in a car accident. He was 17 heading to our house so he could work with my step father that Monday morning. So it's been a crazy couple of weeks for me.

Anyway my aunt is trying to find her copy and I don't want to wait on her. So I called the OME myself. Their going to pull it from the archives and mail it to me. I will then fax it to you. I'm still going to have my aunt keep looking for her original copy because I really have a hard time trusting our Justice department. I'm sure you can understand why.

I do have a question though. If your the DA, why couldn't you get the autopsy report yourself?

I understand because there are multiple officers involved people are a lot slower to convict these murders. One officer is already died and other have been involved in other homeless fatalities.

This case is a murder and conspiracy and Justice will be served.

So once I have this autopsy report and it's fax to you I will then fax it to the NAACP and we can all take it from there.

Thank you again for your time

Sincerely
Jestina Weems

[REDACTED] Wed, Jul 16, 2014 at 12:08 PM

Hi Justina – I'm so sorry to hear about your nephew.

I had thought your aunt had all the paper work on the case, so I was waiting for that to forward to my supervisor. But is the paper work only the autopsy? I thought you'd said there were police reports, but maybe you didn't.

I'm curious why the autopsy is in New Hampshire, if your father passed away in Lowell.

You ask a good question about why we can't request the autopsy. If there is no open criminal investigation, I'm not sure that we would be able to order it. But if I can forward all available paper work to my supervisor, than he can make a decision about opening up an investigation, which would allow us to request things like the autopsy. Let me know. Thanks. Again, I'm sorry to hear about your loss.

Best,

[REDACTED]

Sean

[REDACTED]
Sent: Friday, July 11, 2014 10:01 AM
To: Griffith, Sean (NOR)
Subject: Hello

[Quoted text hidden]

[REDACTED]
Wed, Jul 16, 2014 at 2:39 PM

Hello Sean

My aunt does have the originals copies but is having a hard time finding them. I have a copy being mailed to me from Mass. My mother lives in NH she was going to go to Mass to get a copy but I called and they said if I faxed over a copy of his death certificate and my ID they would mail it. So I should be receiving the papers this week. I never said I had a police report just the case I read online.

As soon as it gets here I can fax it to you.

If you have your supervisor pull up the pictures that they took of my father before they buried him you will see his face is swollen from the blow to the back of the head not a drug overdose.

Another question, since this is not an open investigation how long will it take before it is? These officers have had 21 years without any justice.

Sincerely
Jestina Weems
[Quoted text hidden]

[REDACTED]
Wed, Jul 16, 2014 at 3:21 PM

Hi Jestina – First, I'm sorry I just realized I was misspelling your name.

Are the pictures you're referring to part of the autopsy? Or were there photos taken by the police?

I'm sorry I misunderstood about the police reports. To your knowledge was there ever a Lowell police investigation? Is there anywhere else we should be seeking documents? You mentioned the Justice Department. Was the Justice Department involved? I'm sorry for all the questions. Do you know what the autopsy says is the cause of death?

As for how long it will take to open an investigation, I'm not sure. I can't imagine how frustrating this experience has been. I would suggest our goal at this point should be to collect as much documentation and evidence as we can, as fast as we can, but knowing that this case is over twenty years old we can't set our expectations too high too fast. Let's first see how much we can collect and see what it says. Thanks, Jestina.

Best,

Sean